

Conceptual schemes and empiricism: what Davidson saw and McDowell missed

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ABSTRACT. This paper is an examination and evaluation of McDowell's criticisms of Davidson's views on conceptual schemes and empiricism. I will argue that McDowell does not understand the real nature of Davidson's arguments against the scheme-content dualism and that his new empiricist proposal fails to solve all the problems that old empiricism has traditionally raised. This is so because Davidson does not try to reject *only* a certain conception of experience by rejecting the dualism of scheme and content, but a way of thinking about meaning and knowledge that assumes a dualism that cannot be maintained.

Keywords: Davidson, McDowell, conceptual schemes, empiricism, appearances.

Empiricism has been one of the most important philosophical positions in the history of epistemology. From Aristotle to Quine the idea that experience plays a central role in the construction of our world view has been widely accepted. Even non-empiricist philosophers like Kant have felt the need to accept experience as an external constraint for our thoughts. However, in recent years empiricism has received an important criticism from the work of Donald Davidson. Davidson denies any justificatory role to experience by maintaining that only a belief can play the role of justifying another belief. He achieves this conclusion in the examination of the so-called dualism of scheme and content. The conclusion of this examination is that this dualism is a dogma of empiricism and if we abandon it we must also give up empiricism because this doctrine is only intelligible on the basis of the dualist distinction. On Davidson's view, experience has just a causal role in explaining the acquisition of our beliefs and this is the only relevant role it can have in epistemology.

Among the criticisms Davidson's conclusion has received, McDowell's is particularly interesting. This is so because, like Davidson, McDowell rejects the dualism of scheme and content but, in spite of this, he defends the view that we can keep the old notion of experience, although newly characterised. The difference between Davidson and McDowell lies in the reasons for, and the consequences of, the rejection of the so-called third dogma of empiricism. In this paper I will examine these disagreements and will argue that, though McDowell's criticism of the scheme-content dualism is partially sound, he nevertheless fails to evaluate correctly and completely Davidson's arguments against the scheme-content dualism.

However, the main philosophical problem is that McDowell thinks, and Davidson does not, that there is something important in saving empiricism from the ashes of the scheme-content dualism. For McDowell it is not only important, but also necessary to



appeal to experience if we want to explain how our thoughts can have content. I think that this appeal to experience is unnecessary and we can get the same philosophical result—to be in touch with reality—from a non-empiricist philosophy such as Davidson's. More specifically I will defend that the main problem with traditional empiricism is not only that it conceives experience as something extra-conceptual, but also the role given to experience as a passive element that keeps us in touch with the world. I will finally conclude that McDowell fails to appreciate all the consequences of rejecting the dualism of scheme and content. McDowell considers that the dualism is just *a* solution to Kant's problem about the non-emptiness of our thoughts, although it is in fact an assumption for this problem.

1. McDowell's rejection of the dualism of scheme and content

In his book *Mind and World* and more recently in his article "Scheme-Content Dualism and Empiricism" McDowell argues against Davidson's approach to the scheme-content dualism, not because McDowell wishes to defend it, but because Davidson does not criticize it for the correct reasons and does not draw the correct conclusions from its rejection. Before considering McDowell's arguments against Davidson's position, let us consider McDowell's own arguments against the scheme-content dualism.

McDowell's *Mind and World* is devoted to the issue of how it is possible that our thoughts can represent the world at all. For McDowell this is a *pressing and real* problem, a problem that must be resolved. He thinks that in order to answer this question we have to re-consider Kant's position on the problem, especially his idea that our knowledge of the external world is possible only because of the cooperation of two faculties, receptivity and spontaneity. While receptivity passively provides intuitions, through spontaneity our mind freely produces concepts. The Kantian thought that McDowell wants to establish is that the freedom of our spontaneity is not absolute and has to be constrained by sensibility, that is, the faculty through which we are affected by the world. If this did not happen, the idea of being in touch with the world would be out of the reach for our thoughts. It is because intuitions yield the material to a system of concepts that those concepts can avoid emptiness.

The scheme-content dualism tries to be an answer to the problem of our freedom in producing concepts. According to the dualism, this freedom is restricted, speaking in Sellarsian terms, by something Given and unconceptualised, something for which we are not responsible at all. McDowell considers that, though the problem that motivates the scheme-content dualism is legitimate, the solution provided by the so-called Myth of the Given is erroneous. His main criticism is that the scheme-content dualism, as stated by traditional empiricism, is just *incoherent*. And it is incoherent because one of the members of the dualism, i.e. unconceptualized experience, cannot play the role it is supposed to play in the dualism. This role is to restrict the freedom in the movements within the scheme, to be a tribunal for the rational elements of the dualism. However, if we conceive of experience as traditional empiricism does, that is, as something Given and outside the realm of what Sellars called *the space of reasons*, experience cannot do the job precisely for being outside the rational. This is so because

If rational relations hold exclusively between elements of schemes, it cannot be the case that what it is for something within a scheme to be rationally in good shape, and so worthy of credence, is its being related in a certain way to something outside the scheme (McDowell 1999, p. 89).

McDowell ends by correcting Kant and saying that instead of being blind as the Kantian dictum says, what really happens is that intuitions so conceived are *mute*.

McDowell's criticism is then this: if we distance experience from scheme, limiting the rational to the scheme, then experience cannot be used as a tribunal for anything. As he says in *Mind and World*, at best we get exculpations when we wanted justifications. We cannot be blamed for what happens outside the scheme, but we cannot use it in order to be justified in our idea of being in touch with reality.

This criticism does not mean that the original problem should be abandoned. Though the scheme-content dualism is an unstable position, McDowell warns us to be careful about what conclusions should be drawn from its rejection. His conclusion is that we should give up the idea of experience as something Given, as something extra-conceptual. But this does not mean for McDowell that we have to give up sensibility as a faculty of mind that makes our conceptual scheme answer to the world. As we have seen, only through intuitions can our concepts get the possibility of representing the world. What we should learn from the abandonment of the scheme-content dualism is that "when we enjoy experience conceptual capacities are drawn on in receptivity" (McDowell 1994, p. 10). Though experience is passive, our receptivity is operative on it.

At this point it is important to appreciate that McDowell never considers the possibility that his problem is not a *genuine* problem. He assumes that there is a problem, a real one, the Kantian problem of how is it possible for my thoughts to have the content they have about an external reality. For McDowell those philosophers such as Davidson that do not appeal to experience as an external constraint for our thoughts are in the other horn of the Myth of the Given, i.e. coherentism. The real solution to the dualism is to achieve a notion of empirical content that cannot be blamed for being *given* in the Sellarsian sense. To characterize this content as non conceptual is a mistake and McDowell's own conception will be to consider empirical content as something where conceptual capacities are operative. We will examine McDowell's new conception of experience later. Before this, let us consider his criticism of Davidson's account of the dualism of scheme and content.

2. McDowell against Davidson's coherentism

Before considering McDowell's criticism of Davidson, I will expound briefly Davidson's reasons for rejecting empiricism. We can find in Davidson's work at least two different criticisms of empiricism.¹ The first one attacks its intelligibility and it is presented in his article "On the very Idea of a Conceptual Scheme" (Davidson 1974). The conclusion of this article is that we lack criteria for distinguishing between alter-

¹ There is a third criticism against empiricism considered as a theory of truth and evidence. See Davidson (1990).

native conceptual schemes and therefore we lack criteria for their identity as well. And if we lack a criterion to identify schemes, we lack as well a criterion to distinguish between a conceptual scheme and its content. Quine famously criticized that this distinction could be established sentence by sentence, but he thought that it could be coherently stated by distinguishing between a conceptual scheme and its empirical content conceived of globally. Davidson's article shows that we cannot make sense of this distinction even in that global way. The main target of Davidson's article is conceptual relativism, the idea that there are different conceptual schemes that organize or fit experience differently, either making people view the world differently, or leading some people to consider true what others consider false from their point of view. This has as a consequence that conceptual schemes are incommensurable: there is no common point of view to judge and compare conceptual schemes. Accordingly, a conceptual scheme is its own and only judge with respect to its truth or falsity.

Davidson's criticisms of conceptual relativism put in the centre of his attack the linguistic counterpart of incommensurable conceptual schemes, i.e. untranslatability. Thus, the supposed criterion for distinguishing between conceptual schemes is untranslatability between the languages associated to the schemes. Davidson shows that we cannot make sense of this idea by examining several metaphors and ideas that supposedly have as a conclusion complete or partial failures of translation. The important point of Davidson's analysis is that he does not conclude from his rejection of conceptual relativism that there is just a conceptual scheme; he does not endorse conceptual monism. His conclusion is not that all mankind possess the same conceptual scheme because "if we cannot intelligibly say that schemes are different, neither can we intelligibly say that they are one" (Davidson 1974, p. 198). As we cannot intelligibly say that there are different conceptual schemes, we must provide criteria to identify both conceptual schemes and their content in order to defend that all humans share an identical conceptual scheme. In the absence of those criteria the distinction between a conceptual scheme and its content is just a dogmatic one and those conceptions that, like empiricism, are grounded on that distinction could simply be considered unwarranted.

The second criticism we can find in Davidson's work consists in his claiming that only a belief can justify another belief. According to Davidson neither experiences nor sensations can perform the task of justifying a belief. This criticism, though already stated in "On the very Idea of a Conceptual Scheme", has been more clearly developed in other articles, particularly in "A Coherence Theory of Truth and Knowledge" (Davidson 1986). Its main target is foundationalist theories of knowledge that seek an epistemological base for the rest of our knowledge of the world. Among the candidates to perform the task of grounding knowledge experience is the most brilliant candidate. However, Davidson denies that experience, at least conceived as something extrajudgemental, can serve as justification for beliefs and defends the view that the only property we can guarantee to our beliefs is their coherence with other beliefs. We will examine more carefully this claim in the third and fourth sections of this paper. What is important to realize at this point is that Davidson provides, at least, two criticisms directed against empiricism. This is important because McDowell never consid-

ers properly Davidson's first criticism in "On the very idea of a Conceptual Scheme" and concentrates on the second one. Of course, the second criticism is independent from the first one and it can be defended independently as well. However, it only acquires its real force in the light of the first criticism. If we forget its existence, as McDowell does, it is very easy to misunderstand the real meaning of Davidson's rejection of empiricism.

Though McDowell agrees with Davidson's rejection of the scheme-content dualism, he thinks that Davidson's rejection of empiricism simply does not follow. His main criticism is that Davidson does not recognize the real root of the problem and this misconception makes him draw the wrong conclusions. According to McDowell (1999), Davidson considers that the main reason for adopting the dualism of scheme and content is to guarantee the authority of the subject on his own mental states in order to save subjectivity from the sceptic's hands. McDowell considers that this is a mistake. He offers the example of Quine's philosophy in order to show Davidson's error. He agrees with Davidson that Quine can be accused of holding the dualism of scheme and content. However, Quine cannot be accused of internalising experience as an epistemological barrier against the sceptic. If we examine carefully Quine's reasons for empiricism, we discover that his aim is to show "the extent of man's sovereignty" (Quine 1960, p. 5), not to transform experience into something subjective. This is so, according to McDowell, because the real root of the scheme-content dualism, of the Myth of the Given, is not "an anxiety about our entitlement to our world view" (McDowell 1999, p. 93) as Davidson considers, but "an interest in the conditions of its being intelligible that we have a world view" (McDowell 1999, p. 95). The idea that motivates the scheme-content dualism is that it would be impossible to have any representation of the world if, in Kantian terms, the freedom of our spontaneity —our capacity of producing concepts— were not constrained from outside. Therefore, the real root of the scheme-content dualism is then not a subjectivation of evidence, but the mere possibility of having representations of the world. From this consideration it is easy to see why McDowell sees that the main problem in the scheme-content dualism is the characterization of experience as something unconceptualised. If experience has to restrict the freedom of movements within the scheme, it must have a conceptual character to be able to mediate between the scheme and the world.

Davidson misses the point when he rejects experience as an element of epistemological importance. McDowell thinks that to abandon experience as a constraint on our system of concepts is to lose the very possibility of having representational content at all. McDowell writes that

Davidson is immune to any anxiety about how it is possible that there are world views at all... There is no real question whether world views are about the external world. But this leaves it open that entitlement to this absence of worry may depend on accepting the core thesis of empiricism. If that is so, then someone who rejects empiricism, like Davidson, thereby deprives

himself of the right to his immunity over the non-emptiness of thoughts (McDowell 1999, p. 97).²

Thus, if we do not grant experience an epistemological role, then we cannot explain how it is possible to have representational content at all. McDowell attributes this false *immunity* to Davidson because of his coherentism. McDowell quotes Davidson dictum that “nothing can count as a reason for holding a belief except another belief” (Davidson 1986, p. 310). Coherentism for McDowell is just the other horn of the Myth of the Given: there can be no rational constraint from outside. For McDowell this is “disastrous: it ensures that we cannot refuse to find a mystery in the bearing of belief, or anything else, for instance appearing, on the empirical world” (McDowell 1984, p. 144).

We can summarize this section by saying that, according to McDowell, Davidson’s criticisms of the idea of a conceptual scheme fails to recognize the real nature of the problem and because of this Davidson draws the wrong conclusions, as is the case with his rejection of experience as a justificatory element for our beliefs. This rejection implies abandoning the very possibility of being in touch with the world, of being able to have a picture of it. This is shown in Davidson’s adherence to coherentism, insofar as there is no constraint to the freedom of our spontaneity. However, McDowell’s account of knowledge and experience has yet to face several problems. Is he right in his criticism to Davidson? Do we need experience with us to account for the justification of our beliefs? And, even if the answer to these questions is positive, does McDowell’s own conception of experience solve the problem he wishes to address?

3. *A defence of Davidson*

McDowell’s main accusation against Davidson is that he leaves our thoughts, considered as a body of beliefs, devoid of empirical content because of his adherence to coherentism, a coherentism genuinely unconstrained. Our beliefs do not answer to the world because experience is excluded from the Davidsonian account of thought. Davidson leaves no place for experience in the space of reasons (what McDowell calls *appearings*). McDowell says that “Davidson does not talk about appearings, and he writes as if only beliefs can fill the role that I have suggested appearings can fill”. McDowell adds that “he could have made the same substantial point if he had said: nothing can count as a reason for holding a belief except something else that is also in the space of concepts” (McDowell 1984, p. 140).

I will argue below that McDowell’s new empiricism fails to solve all the difficulties that old empiricism had raised. Before examining McDowell’s own position on experience and its problems, I would like to defend Davidson’s views on meaning and belief from McDowell’s attack. In order to clarify the controversy, it is important to appreciate some differences between McDowell and Davidson’s approaches to the problem. As McDowell (1999, pp. 90-91) correctly realizes, whereas he speaks in Kantian terms when examining the dualism of scheme and content, Davidson speaks

² Davidson accepts *ironically* this immunity in his answer to McDowell (2001). See Davidson 2001, p. 288-89.

of world views and this term presupposes the existence of a body of beliefs. As R.F. Gibson has observed (Gibson 1999, p. 130), this fact makes both approaches to be likely incommensurable. This is so because while we can speak in a Kantian vein consistently of a system of concepts empty of empirical content, it makes no sense to speak in the same terms of beliefs. A belief is a propositional attitude whose content is stated by a proposition and it makes no sense to speak of an empty system of beliefs. McDowell fails to appreciate sufficiently this fact. McDowell would be right in his criticism if Davidson's coherentism were restricted to a system of concepts that would be empty by definition. But if Davidson talks, as he does, in terms of beliefs, it is not clear that McDowell criticism could be applied to him. Of course, given that propositions state the content of beliefs and are constituted by concepts, Davidson could be accused of not considering or not having an answer to Kant's problem about the interaction between receptivity and sensibility. But this is so because, for Davidson, Kant's problem needs for its very intelligibility the dualism of scheme and content, a dualism that for him is untenable insofar as a criterion for the identity for the two members is provided, a criterion that McDowell does not provide. If we could make sense of a conceptual scheme and its content, then we would have the problem about whether and how they interact. However, if cannot make sense of the distinction, the problem does not arise and accusing Davidson of leaving thought devoid of empirical content presupposes the legitimacy of a problem that it is far from clear.

Davidson never poses himself the question as how it is possible for our concepts to have content, at least in term of an individual's mental capacities.³ For him, it is a *fact* that words have meaning and that beliefs have content, and the important question is how we determine the meaning of words and the content of beliefs. In the Davidsonian account of belief and meaning, a belief gets its representational content in the process of radical interpretation. For Davidson a human being subject to interpretation has mental states such as beliefs and desires, to the effect that we can explain her verbal behaviour with the help of those concepts. As Davidson says, beliefs and meanings conspire in accounting for verbal behaviour. In radical interpretation we have to interpret the behaviour of somebody whose meanings and beliefs we ignore. Davidson's well known conclusion says that the only way to understand a person in such a case is to apply the *principle of charity* across the board, i.e. to assume that her beliefs about the world are mostly true and that we have to interpret her, at least in the first stages, as if she were right about how the world is.

³ Davidson tries to give an answer to the problem of how thought is possible, but not in terms of mental capacities as McDowell does. He assumes the problem in linguistic terms and maintains that language is possible due to the existence of two things. The first one is triangulation, a natural process shared with other animals in which two beings recognize each other reaction to the environment. Nevertheless triangulation is not enough to explain thought and language. To have thoughts implies the possession of the concept of truth and only a social environment makes room for the existence of this concept. We can say that the lines of the triangle must be implemented by social control to make sense of the idea of someone being wrong about something, or simply being surprised. As Brandom has pointed out (Brandom 1998), a residual individualism makes McDowell underestimate the significance of this social aspect of thought.

For Davidson, McDowell's Kantian problem is not a problem at all. It is a problem *only* if we presuppose a philosophical background that we are not forced to accept. More specifically it needs the acceptance of the dualist distinction between a conceptual realm and its empirical content. Of course, if there were a system of concepts devoid of empirical content or a capacity of generating such a system and, a natural world waiting to be organized and known, then there would be a problem about how our concepts can apprehend the world. In that case we would need an epistemological intermediary that connects mind and nature. But in the Davidsonian approach we do not need to answer this problem, because it is a false problem. And it is a false problem because it assumes a distinction we lack a criterion for. Instead of accepting the Kantian framework, Davidson offers a new approach based on the case of radical interpretation. In radical interpretation we work at the level of beliefs and sentences, not at the level of concepts. The content of beliefs and sentences is determined through a process of triangulation and once this content is determined there is not a further question about how can a belief or a sentence represent the world. The content of what Davidson calls basic perceptual beliefs is the circumstances the belief is about and there is no need of any additional question about the interaction between the conceptual and the empirical in order to explain this fact. Our senses have a fundamental role in the acquisition of information about the world, but this role is not epistemological, it is causal.

Davidson offers what we might call an *alternative* rather than a solution to the Kantian problem of the interaction between spontaneity and receptivity. Instead of assuming a philosophical background and trying to resolve its inherent problems, Davidson avoids those problems by declaring them false problems based on unjustified assumptions. This is, in my opinion, the only way out for the problems stated by the Kantian framework that McDowell assumes. As we will see, once this framework is accepted, no notion of experience can fill the role of restricting the freedom of spontaneity, including McDowell's appearings. Of course, we must acknowledge that McDowell's conception of experience avoids important problems other conceptions face, but it does not overcome all of them. However, although I think that we can cast doubts on the need for, and the existence of, McDowell's appearings, there is one more crucial problem that McDowell's appearings have to face: even if they are admitted in the epistemological theatre, they cannot have the justificatory role they are supposed to perform.

4. *Looking for a place for experience*

McDowell does not think that we have to give up experience in abandoning the scheme-content dualism. This is so because the real problem with this dualism was a conception of experience as something Given, external to the conceptual sphere. If we conceive it as something that has conceptual content, then experience can fill the role Kant thought it could fill: restricting the freedom of our spontaneity. As we saw, experience so conceived could give us justifications where traditional empiricism only gave exculpations. Thus McDowell introduces a new element in the epistemological

theatre, what he calls *appearings*. Appearings have the role of presenting the world to the mind and they are described as an *openness* to reality.⁴ Appearings have conceptual content and this content can be also the content of a belief. For McDowell the difference between appearings and beliefs is that in appearings we are merely passive, we *take in* that things are so and so, and in beliefs we judge that things are so and so. He describes them as *invitations* to belief (McDowell 2001a, p. 278). Though McDowell recognizes a close relationship between appearings and beliefs because we usually believe what it appears to us, he says that “it is not obvious that the appearing is the belief” and that we can innocuously credit the appearing with rational implications for what we ought to think (McDowell 1984, p. 140). In normal cases the appearing will be a reason for believing that things are thus and so, but it must be possible, on McDowell’s view minimally “to decide whether or not that things are as one’s experience represents them to be” (McDowell 1984, p. 11).

A first difficulty with McDowell’s proposal is whether we conceive of experience in our common practice of justifying beliefs as something exempt from judgment. As Barry Stroud (2001) has pointed out, McDowell is right when he affirms that experience usually serves in daily life as a reason for believing something. But this common notion of experience is not neutral from the point of view of judgment. Stroud concentrates on the case of seeing something. When we affirm, for instance, that we see a blue car, we are compromised with the truth that that car is that colour. We do not see the car and *then* judge what colour it is. There is not a previous invitation to believe on the part of experience. To see something, to hear something, can be a reason for believing something, but not because experience is something more fundamental or neutral from the point of view of judgment, but because an element of belief is involved in it.

I think that Stroud is right in his views on perception and that it involves judgment as well as conceptual capacities. In spite of this, McDowell has offered examples that, in his opinion, show that we can find in our language uses of seeing that imply the existence of his appearings. These are cases of illusions or errors. McDowell considers the Müller-Lyer illusion as an example on behalf of his position (McDowell 1984, p. 11). In this kind of illusion it seems that we can say that we see two lines as unequally long but that once we know they have the same length we refrain from judging that things are as experience presents them to be. We are invited by perception to judge them as unequally long, but we do not accept what it presents to us. It seems that in this kind of cases we can distinguish between the act of seeing something, where we are merely passive, and the act of judging, where we decide to accept or not the truth of what has been seen. While the first mental act produces appearings, the second one produces beliefs and it is based on the presence of appearings.

In my opinion cases of illusion as the one considered do not *force* us to accept McDowell’s appearances. In the case we have just described, we can interpret the act

⁴ Contrary to Humean ideas, appearings are not epistemological intermediaries to base our judgments on. It is their *content* what is judged as true or false, not the impression itself.

of seeing in terms of belief by saying that we once saw them as unequally long and we believed that both lines were not equally long, but now we have measured them and we believe them to be exactly the same length. The question is: once we know they are identical, do we continue seeing them different? Or better: do we continue *affirming* that we *see* them unequally long but we believe that they are identical? I do not think so. In cases of illusion we do not speak in terms of seeing something, we are not forced to say that we see them as unequally long; it is much more natural to say that they *seem* to be different, but that they are not. The change in the use of the verb is not casual. We use “seem” instead of “see” precisely because to see something naturally involves an element of acceptance that our knowledge of the case prevents us from considering the illusion as a normal case of seeing. We use “seem” precisely to advise someone that she faces a case where the usual reliability of the senses cannot be trusted. What this kind of example really shows is just that we have to accommodate our perceptual beliefs in a wider body of beliefs and that further evidence can make us reject some of the beliefs we had previously accepted.⁵ In any case, and regardless of whether these cases are sufficiently representative of perception in general, what they do not show is that it is compulsory to accept a new epistemological element in the epistemological theatre.⁶

McDowell offers other examples to show that we can find in our language uses of seeing that involve his notion of passive conceptualised experience.⁷ I think that all those examples can be interpreted as involving an element of belief. Nevertheless, the main objection against his position does not depend on this point. Let’s concede for the sake of the argument that it is true that these examples really show the need of appearances to explain cases of illusion or error and that these cases can be extended to veridical experiences as well. Accepting all this, do appearances solve the problem of justification? Do they serve as the foundation empirical knowledge needs on McDowell’s opinion? I do not think so. Even if we conceded that appearances exist and are neutral from the point of view of judgment, it is not clear that, in McDowell’s own

⁵ It could be thought that my use of “seem” in cases of illusion is just a way of endorsing McDowell’s view by merely changing terminology. I do not think so. If our ordinary use of the verb “seem” could only be explained by appealing to a kind of perception devoid of judgment, then McDowell would be justified in affirming the existence of appearances. However our ordinary use presupposes that seeing something is an activity that involves judgment. When someone advises us that something seems or looks in a certain way, what he is saying is that we should change our judgment, or that we should suspend judgment because there is additional relevant information to be taken into account about the case. But we change or suspend judgment because *there is* judgment. What it does not follow is that we have to admit among us a new epistemological element —appearances— to account for cases of illusions.

⁶ Gibson —in Gibson 1999, p. 133— points out another difficulty for McDowell’s account for illusions. If we “take in” an aspect of the world when we have a veridical appearance, what happens when we are misled as in the case of illusions? Do we take in an aspect of the world? Or is it merely an appearance? What is the difference between them? It could be said that in both cases (non-misleading and misleading experiences) what is “taken in” is appearances. But this idealist conclusion should not be drawn for a philosophy that wishes to keep us in touch with reality.

⁷ See for instance his answer to Stroud (McDowell 2001a, p. 277-8).

terms, they would offer justifications instead of mere exculpations. We saw that on McDowell's opinion the traditional conception of experience only gave us exculpation where we needed justifications and this was so because experience was conceived of as something non-conceptual. The question is: is conceptualisation enough for experience to become a justificatory element of belief? The answer must be negative. McDowell's conception of experience suffers the same problem he attributes to traditional empiricism: it can only give us exculpations —invitations?, but not justifications. Experience could serve as a justification for believing something only if what is experienced is also believed by the subject, if the appearing transforms into a belief. This is Davidson's main point when he affirms that only a belief can justify another belief. The problem with the Given is precisely that it is *given*, but not *taken*. That is, the subject has not judged it as true or false and therefore it cannot take it as a reason for anything. If appearances were *taken in* as McDowell claims, they would transform immediately into a belief. An appearing cannot justify anything if there is not an acceptance of the content of the appearing. Davidson has expressed this idea in this way:

I do not understand how a propositional attitude which is totally devoid of an element of belief can serve as a reason for anything. We take it in, he says. If this means we *know* what we have taken it in, then we must believe that we have taken it in, and this belief can be a reason. But an attitude that carries no conviction would be inert (Davidson 2001, p. 290).⁸

Appearings are not, contrary to what Rorty has pointed out (Rorty 1998, p. 289), "foundational beliefs". If they were, they could be used as justifications for other beliefs and the problem would be whether they have a foundational role. Rorty is right in considering that appearances have a foundational role in McDowell's epistemology, but once this is admitted it is necessary to say that appearances are not beliefs. Appearings are a new kind of propositional attitude, a passive one neutral from the point of view of judgment. Their supposed virtue is being a hybrid of reason and nature: conceptual capacities are involved in them, but they are given by nature. This is why their passivity is so important for McDowell. But the passiveness that seems to constitute the virtue of appearances makes them useless to solve the problem of justification. The problem with traditional empiricism is not only that it conceives experience as something unconceptualised, but also that the subject is not committed to the truth of what experience represents. Appearings cannot be a reason for anything if there is no commitment to the truth of what they present. Thus, if appearances do not become beliefs they cannot serve as reasons for holding other beliefs. And if they become beliefs they lose their role of being given by nature and of restricting the freedom of spontaneity. McDowell new dress for experience makes it to look better, but this is not enough: appearances solve the problem of conceptualisation, but they are as much in the grip of the dogma of passiveness as old empiricism was.

⁸ Davidson stresses the same point in his answer to McDowell's comments on his book *Subjective, Intersubjective, Objective*. See Davidson 2003, p. 695-6.

5. *Conceptual schemes again*

I think that these last remarks have important consequences for the discussion of the dualism of scheme and content. The dualism of scheme and content is not, as McDowell defends, *only* a solution for the Kantian problem of how can our concepts represent the world. It is not just a failure of a certain conception of experience. The dualism of scheme and content is an *assumption* for the very intelligibility of Kant's problem. Only if we consider that we can distinguish clearly between two different kinds of things, the conceptual and the empirical, can we make sense of the problem of how concepts can have content at all. Kant's problem about the non-emptiness of our thoughts only makes sense if we presuppose this distinction. But the problem is, as Davidson showed in "On the Very Idea of a conceptual Scheme", that a distinction of this kind is not available because we lack of criteria to distinguish between the conceptual and the empirical elements of our thoughts. Moreover, once that this distinction is admitted, no answer can satisfy Kant's exigencies: it becomes an unsolvable problem. Empiricism cannot be an answer to that problem, neither can McDowell's empiricism, because no notion of experience can do what empiricists wish it to do: on the one hand, to be given in the sense that we are not responsible at all about what is presented to the mind; on the other hand, to be a justificatory element for our thoughts. Empiricists must face at this point a tragic dilemma: either they conceive of experience as something given but of no use for epistemological matters, or experience is conceived of as a full member of the realm of thought and then it loses its capacity to answer the Kantian problem about the non-emptiness of thought. And if it loses this capacity, it is not clear that it remains something that deserves to be called empiricism.

The only way of giving a solution to McDowell's Kantian problem is to deny, as Davidson does, the intelligibility of the dualism it is based on: the dualism of scheme and content. This means to declare it a false problem based on distinctions and philosophical doctrines that, when examined, reveal themselves as unintelligible. Kant's problem cannot be *solved*, but it can be *avoided*. This is what McDowell's missed, and what Davidson saw. Davidson is on the right side of the debate, because his position has shown us how to dissolve the Kantian problem of the relationship between mind and world, between a system of concepts and experience, instead of keeping it alive with a new answer condemned to failure. We can be in touch with the world without the friendship of an intermediary that can be repudiated as useless, and that always threatens us with what it promises to be a warrant against: contact with the real world.

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